

Control Number: [REDACTED]

JUSTIFICATION REVIEW DOCUMENT
FAR SUBPART 13.5 SIMPLIFIED PROCEDURES
FOR CERTAIN COMMERCIAL ITEMS
SOLE SOURCE JUSTIFICATION AND APPROVAL

Program/Equipment: Letterkenny Army Depot (LEAD) requires the procurement of various parts in support of the Phased Array Tracking Radar to Intercept on Target (PATRIOT) Electrical Power Plant III (EPP III) recapitalization (RECAP) and reset or repairing recently deployed equipment (RESET) Program.

Authority: The acquisition will be made under Title 41 U.S.C. 1901 Simplified Acquisition Procedures and as implemented in the Federal Acquisition Regulation 13.501(a)(1)(ii), sole source (including brand name) under the authority of the Simplified Procedures for Certain Commercial items.

Amount: The total estimated value of this contract is [REDACTED]

Prepared by:

Typed Name: [REDACTED]

Title: Commodity Manager

Date: 23 July 2024

E-mail: [REDACTED]

Contracting Officer:

Typed Name: [REDACTED]

E-Mail: [REDACTED]

Date Reviewed: 23 July 2024

Technical Representative:

Typed Name: [REDACTED]

Title: Mechanical Engineer

Date Reviewed: 25 July 2024

Requirements Representative:

Typed Name: [REDACTED]

Title: Program Analyst

Date Reviewed: 25 July 2024

Controlled by: Army
Controlled by: ACC-RSA CCAM-DSL
CUI Category: General Procurement and
Acquisition
Limited Dissemination Control: FEDCON
POC: [REDACTED]

Control Number

Reviews

I have reviewed this justification and find it adequate to support other than full and open competition.

Legal Counsel

Typed Name

DSN:

Signature:

Date:

15 August 2024

Control Number: [REDACTED]

**JUSTIFICATION AND APPROVAL
FAR SUBPART 13.5 SIMPLIFIED PROCEDURES
FOR CERTAIN COMMERCIAL ITEMS
SOLE SOURCE JUSTIFICATION AND APPROVAL**

1. Contracting Activity: U.S. Army Contracting Command-Redstone Arsenal (ACC-RSA) Letterkenny Army Depot (LEAD), CCAM-DSL, [REDACTED] Avenue Building [REDACTED] Chambersburg, PA 17201-4150.

2. Description of Action: The Directorate of Industrial Operations (DIO) at LEAD requests approval to award a sole source, Firm-Fixed Price (FFP) requirements contract to [REDACTED] (previously called [REDACTED] El Paso, TX [REDACTED] CAGE [REDACTED] for the purchase of various spare parts for the RECAP and RESET program for PATRIOT Electrical Power Plant III (EPP III). Army Working Capital Funds will be used. The Government projects award for [REDACTED]. An acquisition plan is not required because this procurement does not meet the threshold at Defense Federal Acquisition Regulation Supplement (DFARS) 207.103(d)(i)(B).

3. Description of Supplies/Services: This contract will be for the purchase of 40 different [REDACTED] parts for the RECAP and RESET program for PATRIOT Electrical Power Plant III (EPP III). Parts will be purchased as needed during an ordering period of one base year and four option years. The contract will support the remanufacture for the PATRIOT system to the standard according to the Letterkenny Army Depot Statement of Work (SOW) for the Recapitalization of Electric Power Plant III (EEPP III) dated 02 APR 2021. This project will support an AMCOM requirement for repair of the EPP III and Communication Electric Command (CECOM) requirement for repair of the generator portion of the EPP III only. The acquisition package will be for fiscal year (FY) 2025 through FY 2030. This contract will consist of a base year with four (4) option years. The quantities are as follows:

Part number #	DESC	QTY	OY1	OY2	OY3	OY4
[REDACTED]	Bolt, Cable Reel	5	5	5	5	5
[REDACTED]	Hood	12	12	12	12	12
[REDACTED]	Cover Bearing	7	7	7	7	7
[REDACTED]	Cover Bearing	5	5	5	5	5
[REDACTED]	Cover Protective	5	5	5	5	5
[REDACTED]	Cover Protection	5	5	5	5	5
[REDACTED]	Cover	5	5	5	5	5
[REDACTED]	Cover	5	5	5	5	5
[REDACTED]	Spiral Flat Spring	5	5	5	5	5

	Dust Separator, Air Filter Housing	5	5	5	5	5
	Bracket, Housing	5	5	5	5	5
	Holder, Bus Bar	5	5	5	5	5
	Support, Door	5	5	5	5	5
	Power Cable - Left - N	5	5	5	5	5
	Power Cable - Right - L1	5	5	5	5	5
	Power Cable - Right - L2	5	5	5	5	5
	Power Cable - Right - L3	5	5	5	5	5
	Power Cable - Right - N	5	5	5	5	5
	Cable Duct	5	5	5	5	5
	Cable Duct	5	5	5	5	5
	Shield, Bearing	5	5	5	5	5
	Housing, Bearing	18	18	18	18	18
	Housing, Bearing	5	5	5	5	5
	Connection Plug Assembly	5	5	5	5	5
	Transformer Assembly	5	5	5	5	5
	Cable Drum Assembly, Control Cable	5	5	5	5	5
	Clamp, Lower Section	5	5	5	5	5
	Clamp, Upper Section	5	5	5	5	5
	Bulkhead, Upper Section	5	5	5	5	5
	Bulkhead, Lower Section	5	5	5	5	5
	Fire Extinguisher 6kg	5	5	5	5	5
	Adapter Kit	5	5	5	5	5
	AIR SUPPLY	5	5	5	5	5
	PLATE	5	5	5	5	5
	METER, TIME TOTALIZING	20	20	20	20	20
	BEARING RAIL	5	5	5	5	5
	COVER ASSEMBLY, BEAR	7	7	7	7	7
	OIL FILLER NECK	5	5	5	5	5
	PARTS KIT	5	5	5	5	5
	Cover Protection	5	5	5	5	5

The total estimated value of this contract is as follows:

Base period:
Option Year 1:

Control Number: [REDACTED]

Option Year 2:
 Option Year 3:
 Option Year 4:

Total Estimated Value [REDACTED]

4. Authority Cited: The acquisition will be made under the authority permitting simplified acquisition procedures of 41 U.S.C 1901, as implemented by FAR 13.5, Simplified Procedures for Certain Commercial Products and Commercial Services, and brand name descriptions.

5. Reason for Authority Cited: This requirement will be negotiated on a sole source basis with [REDACTED] previously called [REDACTED] is the original equipment manufacturer (OEM) of the EPP III system. The company name has been changed to [REDACTED] for these proprietary items that are not available anywhere else. The Government does not own the drawings or the technical data rights to any of these proprietary items. No substitute items may be used in EPP III system.

The EPP III is crucial to the PATRIOT major item maintenance workload at LEAD. Timely receipt of the repair parts is necessary for LEAD to meet the Department of the Army's forecasted maintenance requirements on the PATRIOT EPP III and CECOM Generator RESET Program. These repair parts are listed in the technical manual Electric Power Plant III 2 X 150 KW, 400 HZ EPP III TM 9-6115669-13&P, NSN 2815-12-341-6896 as meeting specifications in accordance with Statement of Work / Memorandum of Agreement between Integrated Fire and Missile Command (IFMC) and Letterkenny Army Depot. Repair parts contained in this procurement package are required immediately by IFMC to repair EPP III that support PATRIOT Missile weapon system.

The PATRIOT program/mission directly impacts the safety and wellbeing of deployed troops in OCONUS locations. Failure to meet the established program timelines for LEAD production/re-set/processing presents the probability for the program delays in providing essential assets to the field. The result of delays of this nature is our uniformed forces are placed in increased danger/harm's way in their assigned theater of operations.

[REDACTED] will supply parts of the correct specification and configuration to the command level customer. PATRIOT Integrated Fires Mission Command (IFMC) has coordinated with Letterkenny to overhaul the EPP III to a like new repair standard (RECAP). The parts contained in this procurement package are required immediately by IFMC to repair the EPP III major end item.

The Government does not own the drawings or the technical data rights to any of these proprietary items. On January 22, 2024, LEAD requested to purchase the technical data package from [REDACTED]. On February 16, 2024, [REDACTED] responded that "The

procurement of the Technical Data Package of the Electrical Power Plant is not an available option."

In order for the Government to use a different Electrical Power Plant the Government would need to reverse engineer a new Electrical Power Plant. In addition, there would be a cost associated with research & development and testing of the new system. All EPP III are owned by the various battalions throughout the US Army. All generators would need to be designed to ensure compatibility throughout all the systems.

6. Efforts to Obtain Competition: Because there is only one source for these parts, effective competition is not applicable and will not be pursued for the reasons stated herein and above in Section 5. Market research shows there are no other supplies that can meet the requirement and no additional sources are authorized to supply the part from the manufacturer. Even so, the Contracting Officer shall publish these notices required by FAR 5.201 and any bids or proposals received shall be considered. At this time, no responses have been received and no effective competition is anticipated for this acquisition due to the proprietary nature of these EPP III parts; however, any timely responses will be considered. In accordance with DFARS 205.205-71, DFARS 206.302-1(d), and DFARS Procedures, Guidance and Information (PGI) 206.302-1(d), a sources sought was posted to SAM.gov on 05 February 2024 and closed on 16 February 2024. No responses were received in response to the sources sought notice.

7. Actions to Increase Competition: No action is currently planned by LEAD to increase competition because of the proprietary status of the technical data package. Neither the Government or any other contractor besides [REDACTED] owns the required technical data. The Government does not have sufficient rights to the technical data package (TDP) in order to proceed with full and open competition. LEAD seeks to provide all necessary information to assist interested contractors to bid on any upcoming requirement of a similar nature in which competition is not restricted by manufacture or technical data ownership. The Government requested to purchase the TDP but [REDACTED] in a letter dated August 17, 2017 stated they would not sell the TDP. On January 22, 2024, LEAD requested to see if the TDP is available for purchase. On February 16, 2024, [REDACTED] stated that procuring the TDP of the Electrical Power Plant is not an available option at this time.

8. Market Research: Market research has determined that there cannot be adequate competition at this time. [REDACTED] is the original equipment manufacture of these proprietary parts. [REDACTED] does not have any authorized distributors or resellers. Once this contract is completed, efforts to promote competition will be re-evaluated based on the requirements of the program, current regulations, and available contracts for this specialized equipment in accordance with FAR Part 10. Market research was conducted by [REDACTED] Commodity Manager. The techniques utilized were: (1) personal knowledge in procuring supplies/services of this type, (2) discussions with knowledgeable persons in Government and/or industry regarding the commercial nature, (3) results of market research review for similar supplies, (4) review of

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Government databases for relevant information, (5) review of sources lists for similar items obtained from Government, and/or industry sources, (6) search of internet for vendors. FAR Part 13 will be used for this acquisition, as the market research indicates these items are commercial in nature of a dollar amount permitting the use of Simplified Acquisition Procedures. In accordance with Defense Federal Acquisition Regulation Supplement (DFARS) 205.205-71, DFARS 206.302-19d, and DFARS Procedures, Guidance and Information (PGI) 206.302-1(d), as sources sought will be posted to SAM.gov.

9. Interested Sources: To date, no other sources have written to express interest in this acquisition. The action required by FAR 5.201 has been published. This requirement will be published on SAM.gov. Any source who expresses an interest shall be considered and will receive due consideration under the law. [REDACTED] does not have any authorized dealers or resellers and will need to go directly to [REDACTED] directly for all inquiries.

10. Other Facts:

a. *Procurement history.*

(1) Contract: [REDACTED]
 Contract: [REDACTED]
 Award Date: 17 October 2019
 Award Amount: [REDACTED]
 Competitive Status: Sole Source
 Authority: FAR 13.5.106-1

(2) Contract: [REDACTED]
 Contract: [REDACTED]
 Award Date: 27 June 2018
 Award Amount: [REDACTED]
 Competitive Status: Sole Source
 Authority: FAR 6.302-1(a)(2)(ii)

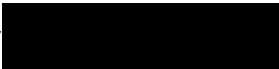
No unusual patterns revealed by historical contracts, however [REDACTED] was issued for items not originally solicited or awarded under [REDACTED]. The current requirement is for items from historical contract [REDACTED] and contract [REDACTED] items are not projected to be needed after that contract expires.

b. Other facts. [REDACTED] was determined commercial and was awarded on a Standard Form 1449 Form, however it incorrectly utilized a FAR Part 6 J&A. Contract [REDACTED] was awarded for additional sole source Jenoptik parts not included on [REDACTED] and utilized a FAR 13 J&A (short form) but was incorrectly awarded on a noncommercial, Standard Form 33. Based on

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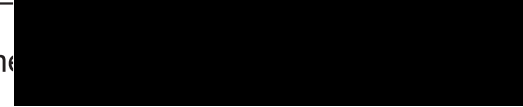


recent market research, these items are still determined commercial, thus this requirement is utilizing a FAR 13.5 J&A and will be awarded on subsequent Standard Form 1449.

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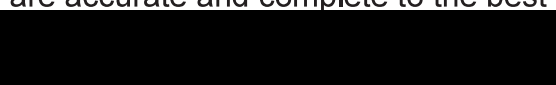
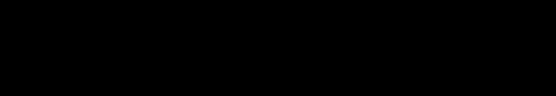
11. Technical Certification:

I certify that the supporting data under my cognizance, which are included in the justification are accurate and complete to the best of my knowledge and belief.

Signature:  Date: 8Aug2024
Typed Name:  Title: Mechanical Engineer

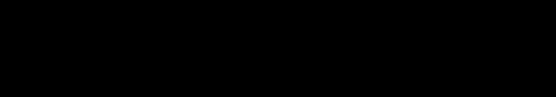
12. Requirements Certification:

I certify that the supporting data under my cognizance, which are included in the justification are accurate and complete to the best of my knowledge and belief.

Signature:  Date: 8 Aug 2024
Typed Name:  Title: Program Analyst(LEAD)

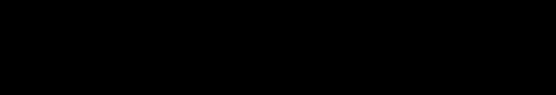
13. Fair and Reasonable Cost Determination:

I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable.

Signature:  Date: 9 Aug 2024
Typed Name:  Title: Contracting Officer

14. Contracting Officer Certification:

I certify that this justification is accurate and complete to the best of my knowledge and belief.

Signature:  Date: 9 Aug 2024
Typed Name:  Title: Contracting Officer

Control Number: [REDACTED]

Approval

Based on the foregoing justification, I hereby approve the procurement of various EPP III parts from Vincorion LLC on an other than full and open competition basis pursuant to the authority of 41 U.S.C. 1901 as implemented by FAR 13.501(a)(1)(ii), sole source (including brand name) under the authority of the simplified procedures for certain commercial items, subject to availability of funds, and provided that the services and property herein described have otherwise been authorized for acquisition. Total value estimated at [REDACTED]

Base period:

Option Year 1:

Option Year 2:

Option Year 3:

Option Year 4:

Total Estimated Value [REDACTED]

Date: _____

Signature [REDACTED]

[REDACTED]
Alternate Command Advocate for
Competition